

10.	24CV0034	SONIA TAPIA VS. SANTIAGO TAPIA ET AL
ATTORNEYS' FEES AND COSTS		

Defendant, Sandra Villasenor ("Defendant"), seeks a reimbursement of attorneys' fees and court costs from Plaintiff, Sonia Tapia ("Plaintiff"), in the amount of \$47,799.42. An Opposition and Request for Judicial Notice were filed by Plaintiff on August 21, 2026. Defendant's Reply was filed on September 3, 2026.

Request for Judicial Notice

Plaintiff seeks judicial notice of 1) the Court's April 10, 2026, Tentative Ruling; and 2) the Court's April 13, 2026, Order.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the request made by Plaintiff falls within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Plaintiff provided Defendant and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Plaintiff has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Background

On December 8, 2025, Defendant filed a Motion for Attorneys' Fees and Costs, which was granted on January 16, 2026, in the amount of \$27,715.13. On February 4, 2026, Plaintiff filed a Motion to Set Aside Default Judgment. On March 6, 2026, Plaintiff filed a Motion for Attorneys' Fees and Costs, seeking \$68,714.50 in attorneys' fees and costs. On March 20, 2026, the Court granted Plaintiff's Motion to Set Aside Default and set aside the January 16, 2026, Order after finding there was no evidence Plaintiff herself ever received the motion documents.

The Court continued the matter to May 8, 2026, and allowed the Parties to file additional briefings. The hearing was thereafter vacated.

On April 13, 2026, the Court entered an Order granting Plaintiff's request for attorneys' fees and costs in the amount of \$68,714.50. The Court determined that the circumstances of the action warrant allocation of the entirety of the awarded attorney's fees and costs against Defendant. On July 24, 2026, Defendant filed a new Motion for Attorneys' Fees and Costs, requesting \$45,814.42 in attorneys' fees and costs.

Legal Principles

Code of Civil Procedure § 874.010 instructs that the costs of partition include:

- (a) Reasonable attorney's fees incurred or paid by a party for the common benefit.
- (b) The fee and expenses of the referee.
- (c) The compensation provided by contract for services of a surveyor or other person employed by the referee in the action.
- (d) The reasonable costs of a title report procured pursuant to Section 872.220 with interest thereon at the legal rate from the time of payment or, if paid before commencement of the action, from the time of commencement of the action.
- (e) Other disbursements or expenses determined by the court to have been incurred or paid for the common benefit.

Except as otherwise provided in this article, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable. Code of Civil Procedure § 874.040.

In an action for partition of property, the court may apportion the costs of partition, including an appraisal fee, pursuant to Section 874.040, except that the court shall not apportion the costs of partition to any party that opposes the partition unless doing so is equitable and consistent with the purposes of this chapter. Code of Civil Procedure § 874.321.5.

Code of Civil Procedure § 2033.420 provides:

- (a) If a party fails to admit the genuineness of any document or the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves the genuineness of that document or the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the

reasonable expenses incurred in making that proof, including reasonable attorney's fees.

(b) The court shall make this order unless it finds any of the following:

- (1) An objection to the request was sustained or a response to it was waived under Section 2033.290.
- (2) The admission sought was of no substantial importance.
- (3) The party failing to make the admission had reasonable ground to believe that that party would prevail on the matter.
- (4) There was other good reason for the failure to admit.

Discussion

1. Attorney's Fees Under the Partition Statutes

Defendant argues that although Plaintiff filed the underlying litigation, it was Defendant who moved the matter to its conclusion which caused her to incur fees to prove her ownership and buy out her interest in the property, both of which could have been achieved without the need for litigation. Defendant's counsel's fees were incurred for the "common benefit" of the Parties, as they were incurred to ultimately accomplish the partition buyout. As Defendant would have never incurred these fees if Plaintiff hadn't sued her needlessly for partition, Defendant is entitled to reimbursement as a matter of law.

Plaintiff opposes the motion on the grounds that she made repeated efforts over several years to obtain a voluntary buyout of her interest prior to filing the underlying partition action. Plaintiff contends the litigation became necessary to obtain payment for her ownership interest and that equity does not support shifting Defendant's claimed attorney's fees to Plaintiff. Plaintiff asserts that the information concerning an alleged transfer of Santiago Tapia Campo's one-third interest was not disclosed until after the partition litigation had begun and after his death.

The court may apportion the fees and costs based on the parties' respective interests in the property, or it may apportion the costs and fees based on some other equitable apportionment." (*Finney, supra*, 111 Cal.App.4th at p. 545, 3 Cal.Rptr.3d 604.) *Lin v. Jeng* (2012) 203 Cal.App.4th 1008, 1023 [138 Cal.Rptr.3d 84, 95] (finding the trial court did not err in granting defendants' motion for attorneys' fees and costs and denying plaintiffs' motion in the entirety due to equitable considerations).

The Court does not find Defendant is entitled to a reimbursement of her fees due to equitable considerations. The Order entered on April 13, 2026, expressly found that the circumstances of the action warrant allocation of the entirety of the awarded attorney's fees

and costs against Defendant. The record further establishes that Plaintiff attempted to avoid litigation by engaging in a voluntary buyout over the course of several years with Defendant to no avail. It was only after Plaintiff brought forth the underlying partition action that it was discovered Santiago deeded his interest to Defendant, and upon this discovery, Plaintiff acted prudently to enter into an agreement. Had Defendant provided such information during Plaintiff's attempts to negotiate a voluntary buyout, litigation and attorney fees could have been avoided in the entirety. Defendant's request for attorneys' fees and costs pursuant to the partition statutes is denied.

2. Attorney's Fees Under the Civil Discovery Act

Defendant also seeks attorney's fees pursuant to the Civil Discovery Act for conclusively proving matters contained in her Requests for Admission sent to Plaintiff, which requests Plaintiff denied. As Defendant was forced to expend fees to prove these matters true, she is entitled to reimbursement.

Upon review of the Requests for Admission at issue and Plaintiff's responses, the Court does not believe attorney's fees are warranted, as there was other good reason for the failure to admit pursuant to Code of Civil Procedure § 2033.420(b)(4). The record indicates that Plaintiff was not aware of the content of the request at the time, and for those reasons, could neither admit or deny the request, and therefore denied the requests. Defendant's request for attorneys' fees and costs pursuant to the Civil Discovery Act is denied.

TENTATIVE RULING #10:

DEFENDANT'S MOTION FOR ATTORNEYS' FEES AND COSTS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

September 11, 2026
Dept. 9
Civil Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**